

THE HON'BLE SHRI JUSTICE ANIL KUMAR JUKANTI

WRIT PETITION No.11513 OF 2014

ORDER:

This Writ Petition is filed seeking the following prayer:

“to issue a Writ order or direction more particularly one in the nature of Writ of Mandamus declaring the action of the respondents in imposing the capital punishment of dismissal from service without providing reasonable opportunity to the petitioner vide Proc No.DO: DGM(RKA):DA:346:2003, Dt.24.4.2003 which was confirmed by the Appellate authority vide Proc No.DO:GM(RK):AA:5286:2004, Dt.6.2.2004 as illegal, arbitrary and in violation of the principles of natural justice discrimination contrary to Service Reg.20(3)-III of Indian Overseas Bank, 1979 and as such liable to be set aside with a consequential direction to the respondents to pay the statutory retirement benefits as the petitioner entitled on the retirement along with interest...”

2. Heard Mr. S.M.Subhan, learned counsel for petitioner and Ms. Deepthi, learned counsel, representing Mr. A.Krishnam Raju, learned counsel for respondents.

3. Petitioner was appointed in the respondent-Bank in 1967 as award staff and subsequently, promoted to the rank of Assistant Manager. Petitioner, while working at Eluru branch as Assistant Manager, a crime was registered for an alleged offence of removing Demand Draft (for short 'DD') book containing 50 leaves. Petitioner was placed under suspension vide order dated 03.02.2001. A charge

sheet was issued on 18.04.2001 for misconduct and contravention of Regulations 3(1) and 3(3) of Indian Overseas Bank Officer Employees (Conduct) Regulations, 1976. Petitioner submitted a reply on 06.06.2001 denying the charges levelled. An Enquiry Officer was appointed vide enquiry order bearing No.DO:DGM(RKA) DA.661:2201, dated 07.07.2001. Petitioner was due to retire on 31.07.2001.

4. Challenging the action of respondents in continuing the disciplinary proceedings, pursuant to charge sheet dated 18.04.2001, W.P.No.21160 of 2001 was filed before the High Court and the High Court by order dated 16.12.2010 dismissed the said writ petition on the ground that the cause in the writ petition does not survive.

5. On 24.04.2003, a dismissal order was passed by Disciplinary Authority. Petitioner preferred an appeal on 03.07.2003, appeal was rejected, confirming the punishment of dismissal from service vide proceedings dated 06.02.2004, both the proceedings are under challenge in this writ petition.

6. Learned counsel for petitioner submitted that a fraud was alleged to have been committed in December, 1998, that complaint was lodged by the manager on 19.01.2000. It is further submitted that when the manager visited the Police station, it was informed to the manager by the Circle Inspector that a person by name Mr. Ramaraju was arrested, brought to Eluru, and 43 DD leaves were seized from him, which were part of the DD book, which went missing from the custody of the branch of Indian Overseas Bank in Eluru.

7. It is submitted that the Police had informed the Manager that G.L.N.Murthy (petitioner herein) was arrested in connection with the crime (vide their letter dated 01.02.2000), which was reported to regional office. It is further submitted that the Circle Inspector informed the manager that the arrested person Mr. Ramaraju had informed the Police that Mr. Ramaraju got the DD book from petitioner. That it was further informed to the manager by the Circle Inspector that one Mr. S.Balakrishna, a retired employee of the bank involved,

was also arrested by the Police. It is also submitted that petitioner and S.Balakrishna were produced before the Magistrate and were sent to Central Jail, Rajahmundry, on 01.02.2000 and later granted bail.

8. It is submitted by learned counsel for petitioner that no action was taken against Mr. S.Balakrishna, accused No.1 in C.C.No.282 of 2008, but, action was initiated against petitioner, accused No.4. It is further contended that disciplinary authority vide proceedings dated 24.04.2003 dismissed the petitioner from service and that the appellate authority confirmed the order of dismissal vide proceedings dated 06.02.2004. It is pointed out that enquiry was conducted, without affording an opportunity and without issuing prior notice. That the same is unjust, arbitrary and violative of Articles 14, 16 and 21 of the Constitution of India.

9. It is submitted that charge sheet was issued on 18.04.2001 and petitioner retired on 31.07.2001. That no disciplinary action was initiated nor even a suspension order was served on Mr. S.Balakrishna, who was the then

Senior Manager of the Bank. That he went on to retire from service in December, 2000. It is further submitted that complaint was lodged on 19.01.2000 and Mr. S.Balakrishna retired 11 months after lodging of complaint. It is pointed out that Mr. S.Balakrishna was arrested and sent to jail in connection with the registered crime bearing No.26 of 2000 regarding missing of the demand draft book, that he was produced before II AJFCM, Eluru, sent to jail on 01.02.2000 and later released on bail. It is further pointed out that Mr. S.Balakrishna was allowed to retire, but petitioner was suspended on 03.02.2001.

10. It is submitted that out of the 50 leaves of the DD book, 43 were seized from Mr. Ramaraju, there was no pecuniary loss. That though a DD for Rs.1,65,500/- was presented to Centralised Clearing Office (CCO), Hyderabad, by Canara Bank, it was not encashed. It is further submitted that Mr. S.Balakrishna was arrested and sent to jail for the alleged misconduct, but being a Senior Manager and being responsible for the DD books, was selectively let off, without inflicting any punishment.

11. It is submitted that though complaint was lodged (in January, 2000) much prior to Mr. S.Balakrishna's retirement, allowing him to go scot-free and making the petitioner responsible for the entire incident amounts to discrimination. That Senior Manager (Mr. S.Balakrishna) was paid the retiral benefits, whereas petitioner was inflicted with the punishment of dismissal from service. Learned counsel submitted that such discrimination is violative of Article 14 of Constitution of India.

12. It is submitted that Appellate Authority passed the order in 2004 and that because of the pendency of W.P.No.21160 of 2001, which came to be dismissed in 2010, till then petitioner waited and choose not to challenge the proceedings of dismissal. It is further submitted that petitioner was not keeping good health up to 2014 and had undergone a spinal cord surgery in 2012, hence, writ petition was filed in 2014, that the delay is not due to any other reason. It is also submitted that petitioner was pursuing C.C.No.282 of 2008. That the competent criminal Court vide judgment dated 22.11.2017,

considering the evidence of PWs.1 to 5 and taking into account Exs.P1 to P17, found the petitioner not guilty for the offences charged.

13. Is it submitted that charges framed by the prosecution pertain to missing of DD book and misuse of DD leaves by fraudsters. It is further submitted that DD books pass through the hands of Senior Manager (Mr. S.Balakrishna) and then the Manager of the bank. It is also submitted that the articles of charge framed by the Disciplinary Authority and charges framed in C.C.No.282 of 2008 are one and the same and that petitioner cannot be inflicted with the punishment of dismissal from service, when a Court of competent jurisdiction acquitted the petitioner after a full-fledged trial.

14. Learned counsel for petitioner submitted that in the facts of the case, punishment inflicted is harsh and shockingly disproportionate, that a clear discrimination is evident from the facts. It is further submitted that holding the petitioner solely responsible in the entire incident and imposing such harsh punishment i.e., dismissal from

service is shockingly disproportionate to the gravity of the charges levelled. It is submitted (submission repeated) that because Mr. S.Balakrishna was Senior Manager (retired in December, 2000), though sent to jail along with petitioner, he was never placed under suspension. That charge sheet came to be issued on 18.04.2001 and by that time, Senior Manager had retired.

15. It is submitted that in the facts of the case, the respondents must have taken a pragmatic view and imposed a lesser punishment. It is lastly pointed out that petitioner alone was made to undergo the disciplinary proceedings. That petitioner served the bank for more than 30 years with an unblemished record and there is no financial loss caused in spite of the fraudsters having presented the DD's, which never were encashed in any branch anywhere in the country. It is lastly urged that the proceedings of Disciplinary Authority and Appellate Authority needs to be set aside.

16. Learned counsel for petitioner relied on the judgments of Hon'ble Apex Court in ***State Bank of India***

and others v. Navin Kumar Sinha¹ and **Ram Lal v. State of Rajasthan and others²**. On the basis of the law declared by the Hon'ble Apex Court in **Ram Lal's** case (2 supra), it is submitted that the charges framed are similar in both the disciplinary proceedings and criminal proceedings and the witnesses, material documents relied being the same in the case of petitioner, the Apex Court's judgment is applicable to the facts of the present case and hence, petitioner be granted relief. Relying on the judgment of Apex Court in **State Bank of India's** case (1 supra), it is submitted that in the case of petitioner too, disciplinary proceedings were initiated after the superannuation, hence, the law laid down by Apex Court is applicable to the facts of the case of petitioner.

17. Learned counsel for respondent submitted that petitioner, while working as Assistant Manager in Indian Overseas Bank at Eluru branch, supplied DD book containing 50 leaves, which was in his custody, to fraudsters. It is further submitted that Regional Office at

¹ C.A.No.1279 of 2024

Vishakapatnam, had written to the Central Office on 10.01.2000 informing about the attempted encashment of fraudulent DD's at CCO, Mumbai, and about the missing of DD book from Eluru branch under Sl.No.98/MDD/P/492951 to 493000 (50 leaves). That Printing and Stationary Department, Central Office, confirmed that the said DD books were sent to Regional Office, Vishakapatnam, for distribution among the branches. That the said DD book was supplied to Eluru branch and on enquiry with the Eluru branch, it was informed that the DD book went missing from custody of Eluru branch.

18. It is submitted that culprits/fraudsters were attempting to encash through State Bank of Hyderabad, Kalina branch, Mumbai, and Canara Bank, Chembur (Mumbai). That one DD bearing No.492958 for Rs.1,65,500/- from the stolen/missing DD book purportedly issued by Kamaraj Salai, Madurai, was paid by them on 31.12.1999 through Canara Bank, Sanjeeva Reddy Nagar Branch, Hyderabad. That the Regional Office

² (2024) 1 SCC 175

of Vishakapatnam had informed Central Office to take necessary action and to issue instructions to other branches to stop payment of other drafts pertaining to the DD book which went missing. It is further submitted that in the letter dated 10.01.2000, it was stated that copies of six forged drafts were obtained and these were all from the stolen draft book. That the affixed seal on the face of the drafts bearing various numbers (page Nos.22 and 23 of the writ documents) with various dates were presented at different banks around the country for encashment.

19. It is submitted that complaint was lodged on 19.01.2000 by the Manager of Eluru branch and that on 30.01.2000, the Manager was informed by the Circle Inspector that 43 leaves of the DD book which went missing were seized from one Mr. Ramaraju. That Mr. Ramaraju had informed that the petitioner had given the said DD book to him. It is also submitted that one Mr. S.Balakrishna, Senior Manager of the bank, who was involved in the incident along with petitioner, were

arrested, produced before the concerned Magistrate and were sent to jail, later released on bail.

20. It is submitted that petitioner was placed under suspension on 03.02.2001, as petitioner was sent to jail. It is further submitted that charge sheet dated 18.04.2001 was issued, framing articles of charge to the petitioner. That petitioner denied charges in his reply dated 06.06.2001. That an inquiry officer was appointed on 07.07.2001 and petitioner retired on 31.07.2001. That respondent organization was right in continuing the disciplinary proceedings. It is further submitted that no disciplinary proceedings were initiated against Mr. S.Balakrishna, Senior Manager, as he retired prior to the issuance of charge sheet (December, 2000). It is pointed out that there is no force in the contention that petitioner alone was made to undergo disciplinary proceedings. It is further pointed out that after retirement of an employee, disciplinary proceedings cannot be initiated, as it would be against the rules of organization.

21. It is submitted that petitioner was issued the charge sheet for his role in the missing of DD book from the Eluru branch containing 50 leaves, when he was discharging his duties as an Assistant Manager of the branch. That the DD book was given to Mr. Ramaraju by the petitioner was stated by Mr. Ramaraju himself who is an accused. It is further submitted that disciplinary proceedings were rightly initiated against petitioner for misconduct. It is also submitted that in the enquiry report, it was observed that Regional Office, Vishakapatnam, had intimated Eluru branch about the missing of DD book and the said fact was also confirmed, when the missing DD's of the same book were presented in two branches in Mumbai and one branch at Hyderabad.

22. It is submitted that 43 DD's were recovered from Mr. Ramaraju and rest six DD's, which were presented at various branches for various amounts, were also taken note of in the enquiry. That in the light of the misconduct of petitioner of having given away DD book to fraudsters, encouraging culprits/fraudsters for encashing by

presenting the DD's at various banks/branches around the country, was a charge grave in nature. That the act amounts to bringing down the reputation of the bank and the faith placed by the organization in the employee.

23. It is submitted that such acts of misconduct should not go unpunished and that the disciplinary authorities, after considering the enquiry report (Ex.P4), arrived at a proper conclusion and the imposition of punishment of dismissal is proportionate to the gravity of the charges levelled, which are grave in nature and that the findings of the enquiry establish moral turpitude on the part of petitioner. It is further submitted that Appellate Authority rightly rejected the application of petitioner on considering the entire factual matrix of the case.

24. It is submitted that petitioner approached the Court after a delay of 10 years, that the proceedings of the appellate authority are dated 06.02.2004. That petitioner is guilty of delay and laches and the said writ petition is not maintainable, as sufficient cause is not shown for the

delay. That petitioner slept over his rights for an unduly long period of 10 years, hence, no indulgence can be shown. For the said proposition of delay and laches, counsel relied upon the judgment of Hon'ble Apex Court in **Chennai Metropolitan Water Supply and Sewerage Board and others v. T.T.Murali Babu**³.

25. Learned counsel for respondents distinguished the case of **Ram Lal** (2 supra) on the ground that Apex Court had held that the charges framed, evidence adduced, documents presented and the witnesses relied upon must all be similar to that of those in the disciplinary proceedings and it is only under such circumstances enunciated in **Ram Lal's** case (2 supra), the said judgment can be made applicable. That in the present facts of the case, the same are not forthcoming. It is submitted that reliance placed on the judgment of **State Bank of India** (1 supra) is not applicable to the facts of the case.

26. Learned counsel for respondents relied upon the judgments of Hon'ble Apex Court in **State Bank of**

³ (2014) 4 SCC 108

Bikaner & Jaipur v. Nemi Chand Nalawaya⁴, ***Management of BHEL v. M. Mani***⁵, ***Karnataka Power Transmission Corporation Ltd. v. C. Nagaraju and another***⁶, ***Noida Entrepreneurs Association v. Noida and others***⁷ and ***Avatar Singh v. Union of India and others***⁸. Placing reliance on these judgments, it is contended that if petitioner is issued charge sheet during his employment (before retirement), disciplinary proceedings can be continued. That, the outcome in criminal proceedings, will not have a bearing on the proceedings of the Disciplinary Authority. It is further submitted that disciplinary proceedings operate on the principle of preponderance of probabilities, that in criminal proceedings, the operating principle is “beyond reasonable doubt”. It is also submitted that the nature of evidence to be adduced and the considerations in disciplinary proceedings are not on the same plane to that of criminal proceedings. It is lastly submitted that the contentions of

⁴ (2011) 4 SCC 584

⁵ (2018) 1 SCC 285

⁶ (2019) 10 SCC 367

⁷ (2007) 10 SCC 385

⁸ (2016) 8 SCC 471

counsel for petitioner are devoid of merits and writ petition be dismissed.

27. Heard learned counsels, perused the record, considered the submissions.

28. Petitioner was appointed in 1967 as an award staff, secured promotions, while working as Assistant Manager in Eluru branch, a complaint was lodged by the Bank Manager (Indian Overseas Bank) on 19.01.2000 in the II Town Police Station regarding missing of DD book. A crime was registered bearing crime No.26 of 2000 for offences under Sections 419, 420, 409 and 380/411 IPC. On the basis of complaint, Circle Inspector of Eluru II Town Police Station conducted raid on 30.01.2000 at Hyderabad and seized 43 blank draft leaves of the missing draft book and also three genuine drafts paid by Eluru branch (DD with printed nos.659709 and 659711 dated 15.12.99 issued by Kamaraja Salai branch and DD with printed no.644437 issued by Kamudhi branch.

29. Petitioner and one S.Balakrishna, Senior Manager, were sent to Central Jail, Rajahmundry, on 01.02.2000, later released on bail. Charge sheet was filed and the crime was numbered as C.C.No.282 of 2008. Mr. S.Balakrishna was A1 and petitioner was A4, two outsiders were A2 and A3 in C.C.No.282 of 2008 on the file of II Additional Judicial First Class Magistrate, Eluru, West Godavari District.

30. *Vide* office suspension order in DO:DGM(RKA) 841.DA 2000 dated 03.02.2001, petitioner was placed under suspension for contravention of Regulations 3(1) and 3(3), for having committed misconduct within the meaning of Regulation 24 of Indian Overseas Bank Officer Employees (Conduct) Regulations, 1976. Petitioner submitted a reply on 06.06.2001 denying the charges. Not satisfied with the reply, an inquiry officer was appointed vide enquiry order bearing No.DO:DGM(RKA) DA.661:2201, dated 07.07.2001. Charge sheet was issued by respondents for continuing the disciplinary proceedings vide proceedings No.DO.DGM(RKA)129:DA;2001, dated

18.04.2001, for misconduct and contravention of Regulations. Petitioner retired from service on 31.07.2001.

31. In the charge sheet dated 18.04.2001, it is reflected as follows:-

“It is therefore charged that

1. You have failed to take all possible steps to ensure and protect the interest of the Bank and discharge your duty with utmost integrity, honesty, devotion and diligence.
2. You have acted in a manner which is unbecoming of a Bank Officer.
3. You have acted otherwise than in your best judgment in the performance of your official duties and in the exercise of the powers conferred on you.

The relevant regulations attracting the above charges are furnished hereunder for your ready reference:

Articles of charge:

3(1). Every officer employee shall, at all times take all possible steps to ensure and protect the interest of the bank and discharge his duties with utmost integrity, honesty, devotion and diligence and do nothing which is unbecoming of an officer employee.

3 (3). No officer employee shall, in the performance of his official duties or in the exercise of powers conferred on him, act otherwise than in his best judgment except when he is acting under the direction of his official superior.

24. Any breach of any of the provisions of these regulations shall be deemed to constitute a misconduct punishable under the Indian Overseas Bank Officer Employees Discipline and Appeal Regulations, 1976.

In the circumstances, you are required to show cause in writing within 10 days from the receipt of this chargesheet as to why disciplinary action should not be taken against you, failing which the matter will be decided as deemed fit and proper.”

32. Preliminary enquiry was fixed on 1.10.2001 at Eluru branch, petitioner did not attend, at his request, venue was

changed, preliminary enquiry was fixed at Regional Office, Visakhapatnam, on 26.3.2002. Petitioner did not participate in the enquiry, but left a letter dated 26.03.2002, stating that he was a stranger and that he was outside the scope of enquiry. Petitioner refused to receive Conduct Regulations of Indian Overseas Bank Officer Employees (Discipline and Appeal) Regulations 1976, demanded by him. An *ex-parte* enquiry was conducted by Inquiry Authority (for short 'IA') on 26.3.2002. Points raised in petitioner's letter were dealt with and a copy of the enquiry proceedings held on 26.3.2002 were sent to the petitioner on 28.03.2002 along with copies of list of documents, list of witnesses and investigation report. It is stated in the counter affidavit that petitioner was given an opportunity to inspect the listed documents at Eluru branch along with his defence representative. Having received the aforesaid letter on 06.04.2002, petitioner did not take any steps.

33. Regular enquiry was fixed on 24.07.2002, petitioner failed to attend the enquiry, there was no communication

from petitioner, enquiry was conducted *ex-parte* on 24.07.2002. Copy of proceedings recorded on 24.07.2002 was sent on 26.07.2002. Presenting Officer's brief was sent on 26.8.2002 by the Inquiring Authority. Petitioner was asked to submit written explanation within 15 days, he failed to submit till 09.10.2002. Findings of IA were sent on 16.10.2002 by the Disciplinary Authority, for which, petitioner did not offer any objections/explanations/comments. Final orders/proceedings were issued to the petitioner by the Disciplinary Authority vide proceedings dated 24.04.2003.

34. The facts culled out demonstrate that petitioner was granted enough opportunities to defend his case. It is evident from the record that petitioner failed to respond to the communications sent and received by him. The contention that the enquiry was *ex-parte* is without any basis and does not stand the test of time. This Court is not inclined to show any indulgence to the contentions advanced that the enquiry was conducted without granting any opportunity, as the same are devoid of merits.

35. The contention that disciplinary proceedings cannot be continued after retirement of petitioner is fallacious, in the light of the fact that petitioner was served with charge sheet dated 18.04.2001 prior to his retirement dated 31.07.2001 is suffice to dislodge the contention. Disciplinary proceedings initiated prior to retirement can be continued, there is no bar. No regulation has been pressed into service to substantiate the contention put forth. The Hon'ble Apex Court in a catena of Judgments has held that disciplinary proceedings initiated against a delinquent officer, before he ceases to be in service, can be continued and concluded by the authorities post retirement. This Court is not inclined to uphold the contention raised on behalf of the petitioner on this aspect. Contention is devoid of merits and is dislodged.

36. Writ Petition is filed in 2014, ten (10) years from the date of Appellate Authority proceedings. Principle of delay and laches sets in, where the delinquent approaches belatedly, the principle is roped in. But, it is trite law that each case has to be considered on its own merits, facts and

circumstances. C.C.No.282 of 2008 was decided in 2017, petitioner stated that he was pursuing the criminal case diligently and had undergone a major surgery in 2012, due to Cervical Compressive Myelopathy (Spinal Cord Problem). Petitioner also stated that he was not paid any amounts, as he stood dismissed. Considering the fact that petitioner was dismissed from service and that he had a family to run would undoubtedly cast a financial burden and the fact that he was operated for spinal cord problem cannot be ignored. The respondents have applied a different yardstick in issuing suspension proceedings to the petitioner (a clear case of discrimination) and dismissed from service, a shockingly disproportionate punishment as contended, are factors, which cannot be ignored. Hence, the ground of delay and laches in the facts and circumstances of the case is negated.

37. A perusal of the record indicates that two employees of the respondent Bank of Eluru branch i.e., one Mr. S.Balakrishna, Senior Manager and petitioner were

produced before Magistrate and both were sent to jail in Crime No.26 of 2000.

38. Complaint came to be lodged on 19.01.2000, both were sent to jail on 01.02.2000, later released on bail. Petitioner was placed under suspension from 03.02.2001. It is evident that no disciplinary proceedings were initiated against Mr. S.Balakrishna, who retired in December, 2000, nor suspension was affected.

39. It defies the logic of this Court as to why the respondents caused the suspension of the petitioner, after retirement of Senior Manager (Mr. S.Balakrishna) of the bank, when it is evident from the enquiry report that along with petitioner, Mr. S.Balakrishna, Senior Manager, was also sent to jail. No plausible explanation is offered nor any reasons are forthcoming from the counter affidavit.

40. It is observed from the counter affidavit at paragraph No.11 that preliminary investigation was conducted by Shri Ashok Shankar, Senior Regional Manager and Shri P.Krishna Mohan, Deputy Chief Officer, on

14.01.2000, 17.01.2000 and 18.01.2000 and statement of petitioner was recorded on 17.01.2000. Without there being any allegation against Mr.S.Balakrishna, Senior Manager, he could not have been arrested and sent to jail and shown as accused No.1 in C.C.No.282 of 2008.

41. This Court is conscious of the fact that the Judgment of the competent criminal Court cannot be looked into or considered, while dealing with a challenge to the proceedings of Disciplinary Authority and the Appellate Authority. DD book is one of the security items as per the banking norms. In the facts of the case, it is pertinent to ascertain as to who would be the person(s) in charge of the security items in a bank. The same is not forthcoming from the record. Hence, it becomes imperative for this Court to take note of the relevant portion(s) of the depositions of the complainant (examined as PW.1) and Mr.R.Venkulu, Manager of IOB, Eluru Branch (examined as PW.2) to the extent with respect to the person(s) in-charge for security items in the bank.

42. PW.1 deposed in C.C.No.282 of 2008 that security items will be in the custody of the Manager and another officer of the branch of the Bank. That Senior Branch Manager is overall in-charge of the branch and Manager is the second line. PW.2 (Manager of Eluru Branch) deposed that he is the second line, Manager of the branch, that all the security items concerning the branch i.e., DD books, bankers cheques, deposits, receipts etc., used to be in his custody. That in the event of he going on leave or official duty, the custody of security items would be given to any of the Assistant Managers.

43. Mr. S.Balakrishna was Senior Manager and petitioner was Assistant Manager at the IOB Branch at Eluru. On a perusal of the record, it is observed that there is no statement forthcoming in any of the proceedings that the DD book was handed over to the petitioner by any of the officers above the line of petitioner. It is the statement of one Mr. Ramaraju, an accused, that DD book was given to him by petitioner.

44. Be that as it may, this Court is unable to fathom as to why the respondents have not issued any proceedings to Mr. S.Balakrishna. It is evident from the record that Mr. S.Balakrishna was working in the same Branch as Senior Manager. The security items are under the custody of the Senior Manager or Manager and that only in certain circumstances, they are placed under the custody of any of the Assistant Managers of the Branch. It is not forthcoming as to who has handed over the security item i.e., DD book to the petitioner, i.e., whether it was the Senior Manager or the Manager. In the absence of such information forthcoming from the record, it cannot be held that the security item (i.e., DD book) was directly under the custody of petitioner.

45. Non-issuance of suspension proceedings to the other employee and issuance of suspension proceedings after the retirement of Mr. S.Balakrishna, the other employee, casts any amount of doubts on the approach of respondents. Suspension proceedings issued after retirement and issuance of charge sheet later and proceedings initiated

solely against the petitioner, that too after retirement of Mr. S.Balakrishna, definitely have to be weighed by this Court. The fact that a charge sheet with articles of charge was framed and served (dated 18.04.2001) on the petitioner 3½ months before petitioner's retirement and after retirement of the other employee (including suspension proceedings) speaks volumes of the approach adopted by the respondent authorities. There is no explanation forthcoming as to why suspension proceedings were issued to only one of the two (2) person(s), when both of them were sent to jail. The aforesaid approach is obviously incorrect and cannot be said to be a fair approach.

46. The act(s) of the respondent(s) are at variance, it is apparent that different yardsticks have been applied *vis-à-vis* petitioner and Mr. S.Balakrishna. Lack of bonafidies, an unfair approach, is *prima facie* visible from the facts noted supra. An unfair approach is evident from the facts of the case and such a flawed approach is an antithesis to Article

14 of the Constitution of India. The acts of respondents are violative of Article 14 of the Constitution of India.

47. Disciplinary authority imposed the penalty in the following terms: *“Dismissal which shall ordinarily be disqualification for future employment”* in terms of Regulation 4(j) of Indian Overseas bank Officer Employees (Discipline and Appeal) Regulations 1976.

48. Punishment imposed is shockingly disproportionate and needs to be reconsidered. It is apparent from the record that petitioner was discriminated, it casts any amount of doubt, the approach adopted by the respondents is not correct. When discrimination is writ large, Courts have to be cautious in appreciating the proceedings of dismissal. If only the respondent authorities had taken a rational approach in issuing timely suspension proceedings to both the employees, this Court would not have ventured into this exercise. For reasons best known to the respondent authorities, they let go the Senior Manager i.e., Mr. S.Balakrishna scot free and permitted him to retire safely granting all benefits including full pension, without

even causing suspension. This Court has no hesitation to hold that the employee permitted to retire was given an olive branch. Similarly situated persons should be dealt with in a similar manner, there cannot be any discrimination, any dissimilarity exhibited needs to be taken note of. The act(s) of respondent(s) are not only stigmatic in the case of petitioner, suffer the vice of discrimination and the same are patently unjust, illegal and arbitrary.

49. For reasons aforesaid and in the facts and circumstances of the case narrated supra, this Court is of the considered opinion that interests of justice would be met, if the orders of Disciplinary Authority and Appellate Authority are set aside and the matter be remanded to the Disciplinary Authority to consider afresh for imposition of a lesser penalty. Accordingly, the orders of Disciplinary Authority and Appellate Authority are set aside and the matter is remanded for fresh consideration. It is brought to the notice of this Court that petitioner is aged about 82 years. This Court deems it appropriate that respondent

authorities be directed to complete the exercise within a period of eight (08) weeks from the date of receipt of a copy of this order and issue proceedings, hence, authorities are accordingly directed.

50. For reasons aforesaid, writ petition stands disposed of. There shall be no order as to costs.

Miscellaneous applications pending, if any, shall stand closed.

ANIL KUMAR JUKANTI, J

Date: 06.01.2025
PLP/ssm/KRR